

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005730

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: JESSICA JOHL

vs.

DEFENDANT: LUHRS PROPERTY
MANAGEMENT, INC., A CALIFORNIA
CORPORATION ET AL.

NATURE OF PROCEEDINGS: MOTION – CONTINUE TRIAL

RULING

Plaintiff's motion to continue trial and for an extension of discovery to correspond with the new trial date is GRANTED, but the parties shall appear to confirm the new trial date. The Court declines to extend any date for expert designation.

Plaintiff brings this motion to continue the trial which currently set for November 2, 2026, for approximately seven weeks to January 19, 2027, and to also continue discovery to correspond with the new trial date. Separately, Plaintiff has filed a motion to compel discovery which is currently set for December 9, 2026. Defendant opposes the motion to continue.

Motions to continue trial are governed by California Rule of Court 3.1332. Rule 3.1332(a) provides that, "[t]o ensure the prompt disposition of civil cases, the dates assigned for a trial are firm." However, subdivision (c) allows a court to grant a continuance upon an affirmative showing of circumstances which may constitute good cause. These factors include but are not limited to the proximity of the trial date, whether there was a previous continuance, the length of the continuance, the availability of alternative means to resolve the problem causing the continuance, the prejudice to the parties, whether the parties have stipulated to the continuance, and whether the interests of justice will be served by a continuance. (Cal. Rule Ct. Rule 3.1332(c).)

Plaintiff's stated basis for seeking a continuance and corresponding extension of discovery are based on her claim that while she diligently sought the depositions of Defendants and principal witnesses after completion of her deposition on April 24, 2026, those depositions were delayed. The depositions which were completed in August, revealed new discovery concerning communications, documents, witnesses and questions regarding photographs and videos. Plaintiff seeks a seven week continuance to allow her to complete follow up discovery.

Defendant opposes the motion arguing that there has been ample time to conduct discovery and that in any event, the expert disclosure date should not be extended as the parties have been very clear as to the issues requiring experts.

The Court agrees in part with Plaintiff and finds good cause for a brief continuance of the trial date and the extension of discovery. The Court docket reflects that an ex parte application was filed to compel the depositions of Defendants back in June. This demonstrates that Plaintiff was in fact, diligently pursuing discovery and that such depositions were delayed. Additional factors weighing in favor of Plaintiff include that the trial date extension and discovery continuance are brief, that there have been no prior continuances, and that Defendants have not demonstrated prejudice with a brief continuance.

As to the expert disclosure date, the Court sees no reason why this date should be extended.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006429

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: CONSUELO BUSTINZA

vs.

DEFENDANT: U.S..BANK NATIONAL
ASSOCIATION ET AL.

NATURE OF PROCEEDINGS: MOTION – DISCOVERY – DISCOVERY FACILITATOR
PROGRAM

RULING

On June 29, 2026, Plaintiff filed a motion to compel Defendant to provide further responses to interrogatories. Defendant argues that Plaintiff's motion is untimely as the parties did not agree to extend the time to move to compel indefinitely as Plaintiff asserts. Defendant also asserts that supplemental responses have been served.

Unless a party moves to compel within 45 days of service of a verified response, the propounding party waives any right to compel further responses unless the parties agree in writing to a further extension. (Code of Civ. Proc. §2030.300). Plaintiff did not produce any written agreement extending the time to move to compel beyond March 2026. Nonetheless, Defendant waived its claim of untimeliness when it served further responses to interrogatories in August and September.

Plaintiff did not file a Declaration of Non-Resolution identifying what responses, if any remain outstanding. Given Defendant's willingness to provide further responses notwithstanding the untimely filing of the motion, the Court finds that the imposition of sanctions would be unjust.

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.